

		required by California Rules of Court, rule 9.40(c)(1). Furthermore, the original and amended application reference the “Declaration of L. Jason Cornell” and a “proposed order” but no such documents have been filed and/or they are not included with the application. The hearing is continued to allow Plaintiffs to correct these deficiencies. Plaintiffs shall give notice.
205	<i>Guerrero vs. Grassy Sprain Group, Inc.</i>	The motion for judgment on the pleadings filed by defendant Grassy Sprain Group, Inc. (Defendant) directed to the first amended complaint (FAC) of plaintiff Mathew Guerrero (Plaintiff) is GRANTED with 30 days leave to amend as to the first through seventh, ninth through eleventh, and thirteenth causes of action, and GRANTED without leave to amend as to the eighth and twelfth causes of action. The parties’ requests for judicial notice are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264.) <u>Eighth and Twelfth Causes of Action</u> In the Opposition, Plaintiff states he dismisses the eighth cause of action for malicious prosecution and the twelfth cause of action for intentional infliction of emotional distress. (See Opp. at p. 5:22-23.) The motion as to the eighth and twelfth causes of action is therefore GRANTED without leave to amend. <u>First and Thirteenth Causes of Action</u> Plaintiff’s equitable claims for declaratory relief and injunctive relief in the first and thirteenth causes of

action are based on the allegation the judgment in the Underlying Action is void because Defendant lacked standing to enforce the debt sued upon due to a “gap in the chain of title” for the debt. (See FAC ¶¶ 13, 56-57.) Plaintiff’s allegation there is a gap in the chain of title is based on the fact the Master Bill of Sale for the transfer of the debt from CBL Trust 2112 to Jefferies Mortgage Funding LLC post-dated the transfer. (See FAC ¶ 7 and Ex. B.) Specifically, the Master Bill of Sale attached to the FAC shows that the Master Bill of Sale was “executed as of November 20, 2018, with an effective date of September 22, 2014.” (FAC, Ex. B.)

Plaintiff alleges in the FAC because the Master Bill of Sale “did not exist until November 20, 2018, “no valid transfer to Jefferies Mortgage Funding LLC could have occurred prior to that date, and all purported downstream transfers from Jefferies to Defendant are invalid.” (FAC ¶ 7.) However, “[i]n the absence of [a] statute or a contract provision to the contrary, *there are no prescribed formalities that must be observed to make an effective assignment*. It is sufficient if the assignor has, in some fashion, manifested an intention to make a present transfer of his rights to the assignee.

[Citations.] Even oral assignments may be valid. [Citation.].” (*Hearn Pacific Corp. v. Second Generation Roofing, Inc.* (2016) 247 Cal.App.4th 117, 149 (internal citations and quotations omitted) (italics in original); see also, Civil Code § 1052 [“A transfer may be made without writing, in every case in which a writing is not expressly required by statute.”].)

Thus, simply because the Master Bill of Sale was executed after the effective date of the assignment does not establish the assignment is invalid. Plaintiff offers no authority in the Opposition showing the transfer of the debt was invalid under the circumstances alleged in the FAC and in light of the foregoing authorities, which were cited by Defendant in the motion. Plaintiff’s allegation there is a gap in the chain of title rendering all downstream transfers invalid is an unsupported

conclusion of fact and/or opinion which the court need not accept as true.

Plaintiff sets forth numerous extrinsic allegations in the Opposition regarding Defendant's claim of title and its purported invalidity. These facts are not pled in the FAC and thus may be disregarded. "The only issue involved in a [motion for judgment on the pleadings] is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

The motion as to the first and thirteenth causes of action is **GRANTED with 30 days leave to amend.**

Second through Seventh and Tenth through Eleventh Causes of Action

Defendant contends these causes of action are barred by the litigation privilege. (Civil Code § 47(b); see also, *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057, 1063-1065.)

Plaintiff failed to address this argument in the Opposition and thus an inference is created that the argument is meritorious. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410; see also, *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to oppose issue is treated as waiver].)

The motion as to the second through seventh and tenth through eleventh causes of action is **GRANTED with 30 days leave to amend.**

Ninth Cause of Action

As discussed above, the FAC fails to allege sufficient facts showing Defendant's title to the debt was invalid. The FAC thus necessarily also fails to show a violation of the Rosenthal Act occurred. This cause of action, like